

A notice of conditional settlement was filed on 12/31/24, but no party subsequently filed a request for dismissal. Thus, this case has not been dismissed.

The Defendant made payments of \$1,740.

Costs are \$292. A memo on costs was filed 11/20/25.

Disposition

Plaintiff's Motion is granted to the extent it calls for the entry of judgment under the 664.6 agreement. There was no dismissal, so there's nothing to vacate.

Judgment will be entered in the amount of \$7,719.03.

Plaintiff shall prepare and submit a proposed order and judgment and serve notice of entry of same on defendant.

2. 9:00 AM CASE NUMBER: L24-07531

CASE NAME: CAPITAL ONE N.A. VS. MAHKAYLA HENRY

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address at which Defendant was served with process through substitute service. Defendant has made no effort to indicate that the service of process was invalid. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$4,506.71, plus costs, less any credits for payments received.

Costs are \$583.61. A memo on costs was filed with the court.

The Stipulated Agreement was filed 11/4/24.

A dismissal was entered on 12/16/24.

Defendant made payments of \$113.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,977.32.

Plaintiff shall prepare and submit a proposed order and judgment and serve notice of entry of same on defendant.

3. 9:00 AM CASE NUMBER: L25-05870

CASE NAME: CAPITAL ONE N.A. VS. AMELIA TANDINCO

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

On 3/11/26, Plaintiff filed an amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

Defendant did not file an opposition to the motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.